



CHAPTER 47.

An Act to provide further facilities for the marriage of members of His Majesty's forces (including women's services) during the war period, and to amend the Marriage (Naval, Military and Air Force Chapels) Act, 1932. [11th November 1941.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) Where the parties to an intended marriage have duly fulfilled all the conditions required by law for enabling them to be married in a building in England, then, if either of the parties, being a member of His Majesty's forces, has obtained from the appropriate authority a certificate that owing to the exigencies of His Majesty's service he or she cannot go to that building and that the said authority has no reason to believe that he or she is already married, the marriage may, during the war period—

Alteration of
place of
marriage.

- (a) be lawfully solemnized in any other building in England in which marriages may be lawfully solemnized, as if the parties had duly fulfilled all the conditions required by law for enabling them to be married in that building ; or
- (b) be lawfully celebrated by a minister in Scotland, or contracted in the office of an authorised registrar in Scotland, as if the parties had duly fulfilled all the conditions required by law for enabling the marriage to be so celebrated or contracted.

(2) Where the parties to an intended marriage have duly fulfilled all the conditions required by law for enabling a marriage between them to be celebrated or contracted in

Scotland, then, if either of the parties, being a member of His Majesty's forces, has obtained from the appropriate authority a certificate that owing to the exigencies of His Majesty's service he or she cannot go to Scotland to be married there, and that the said authority has no reason to believe that he or she is already married, the marriage may, during the war period, be lawfully solemnized in any building in England in which marriages may lawfully be solemnized, as if the parties thereto had duly fulfilled all the conditions required by law for enabling them to be married in that building.

Extension of
time for
marriage.

2.—(1) The following provisions of this section shall have effect, notwithstanding anything in any other enactment, as respects the time within which a marriage may be solemnized, celebrated or contracted in cases where, at the time when the marriage is solemnized, celebrated or contracted, one at least of the parties thereto is a member of His Majesty's forces—

4 Geo. 4. c. 76.

- (a) if publication of the banns has been completed (whether before or after the commencement of this Act) in accordance with the provisions of the Marriage Act, 1823, the marriage may be solemnized in England at any time during the war period within one year after the complete publication of the banns, and any certificate granted with respect thereto shall have effect accordingly ;
- (b) if a licence for the marriage has been granted (whether before or after the commencement of this Act) by an archbishop, bishop, ordinary or other person having authority to grant such a licence, the marriage may be solemnized in England at any time during the war period within one year after the grant of the licence, and the licence shall have effect accordingly ;
- (c) if notice of the marriage has been entered and a certificate thereon granted (whether before or after the commencement of this Act) by a superintendent registrar in England, the marriage may be solemnized in England or celebrated or contracted in Scotland at any time during the war period within one year after the entry of the notice, and the notice and certificate and any licence which may have been granted thereon shall have effect accordingly ;
- (d) if notice of the marriage has been given to, and a certificate thereon granted by, a registrar in Scotland (whether before or after the commencement of this Act), the marriage may be solemnized in England or celebrated or contracted in Scotland at any time during the war period within one year after the date of the certificate, and the notice and certificate shall have effect accordingly.

(2) The reference in paragraph (a) of the foregoing subsection to the provisions of the Marriage Act, 1823, shall be construed as including a reference to those provisions as amended or applied by any subsequent enactment.

3. Where—

- (a) a superintendent registrar in England receives during the war period notice of an intended marriage to be solemnized by licence; and
- (b) one at least of the parties to the intended marriage is a member of His Majesty's forces;

Power to issue marriage licence forthwith after notice of marriage.

the Registrar General may, notwithstanding anything in section nine of the Marriage and Registration Act, 1856 (which provides that the certificate and licence to marry mentioned in that section shall not be issued until the expiration of one whole day after the day of entry of the notice) authorise the superintendent registrar to issue such a certificate and licence forthwith after entry of the notice.

19 & 20 Vict.
c. 119.

4. Subsection (2) of section one of the Marriage (Naval, Military and Air Force Chapels) Act, 1932 (which describes the persons qualified to marry in a chapel to which the Act applies) shall have effect as if the following paragraph were substituted for paragraph (d) thereof (which relates to the nursing service):—

Naval, military and air force chapels (qualification of women's services).
22 & 23 Geo. 5.
c. 31.

“(d) is a woman actually employed in any capacity specified in the First Schedule to the Marriage (Members of His Majesty's Forces) Act, 1941, as amended by any Order in Council for the time being in force under that Act, in the service of any force mentioned in the foregoing paragraphs of this subsection;”

5.—(1) For the purposes of this Act, the expression “member of His Majesty's forces” means—

Interpretation
&c.

- (a) a man, being a member of any of His Majesty's naval, military or air forces; or
- (b) a woman in the service of any of His Majesty's naval, military or air forces in any capacity respectively specified in Part I, Part II or Part III of the First Schedule to this Act.

(2) His Majesty may by Order in Council direct that, subject to any exceptions specified in the Order, there shall be added to Part I, Part II or Part III of the said Schedule, women in the service of any of His Majesty's naval, military or air forces respectively in such capacities as may be specified in the Order.

(3) For the purposes of this Act, the expression “appropriate authority” in relation to a member of His Majesty's forces of any description specified in the first column of the Second

Schedule to this Act, means the authority respectively specified in the second column of that Schedule.

(4) A certificate stating that—

- (a) a person named in the certificate is a member of His Majesty's forces for the purposes of this Act; and
- (b) that the person signing the certificate is the appropriate authority for the purposes of this Act in relation to that person;

shall be conclusive evidence for the purposes of this Act of the facts so stated.

(5) For the purposes of this Act, the expression "the war period" means the period beginning with the commencement of this Act and ending when the Emergency Powers (Defence) Act, 1939, expires.

2 & 3 Geo. 6.
c. 62.

(6) An Order in Council under this section may be varied or revoked by a subsequent Order of His Majesty in Council.

Short title.

6. This Act may be cited as the *Marriage (Members of His Majesty's Forces) Act, 1941.*

SCHEDULES.

FIRST SCHEDULE.

Section 5.

WOMEN WHO ARE MEMBERS OF HIS MAJESTY'S FORCES FOR PURPOSES OF ACT.

PART I.

NAVAL FORCES.

Employed in the Naval Service with relative rank of a medical officer.

Member of the Women's Royal Naval Service.

Member of Queen Alexandra's Royal Naval Nursing Service, or its reserve.

PART II.

MILITARY FORCES.

Employed with the Royal Army Medical Corps with relative rank as an officer.

Member of Queen Alexandra's Imperial Military Nursing Service, or its reserve.

Member of the Territorial Army Nursing Service, or its reserve.

Member of the Auxiliary Territorial Service.

PART III.

AIR FORCES.

Employed with the medical branch of the Royal Air Force with relative rank as an officer.

Member of Princess Mary's Royal Air Force Nursing Service, or its reserve.

Member of the Women's Auxiliary Air Force.

Section 5.

SECOND SCHEDULE.

APPROPRIATE AUTHORITY FOR PURPOSES OF ACT.

Description of member of His Majesty's forces.	Appropriate authority.
A man borne on the books of one of His Majesty's ships.	The officer commanding the ship.
A man, being a member of any of His Majesty's military forces, and not being a marine borne on the books of one of His Majesty's ships.	An officer not below the rank of major.
A man, being a member of any of His Majesty's air forces.	An officer not below the rank of squadron leader.
A woman serving in any capacity specified in Part I of the First Schedule to this Act, as amended by any Order in Council for the time being in force under this Act.	The officer commanding the ship or establishment to which she is attached, or a woman of a rank not below a rank equivalent to that of commander.
A woman serving in any capacity specified in Part II of the First Schedule to this Act, as amended by any Order in Council for the time being in force under this Act.	An officer not below the rank of major, or a woman of a rank not below a rank equivalent to that of major.
A woman serving in any capacity specified in Part III of the First Schedule to this Act, as amended by any Order in Council for the time being in force under this Act.	An officer not below the rank of squadron leader, or a woman of a rank not below a rank equivalent to that of squadron leader.

Printed by SIR WILLIAM RICHARD CODLING, C.B., C.V.O., C.B.E.,
Controller of His Majesty's Stationery Office
and
King's Printer of Acts of Parliament.

To be purchased directly from H.M. STATIONERY OFFICE at the following addresses:
York House, Kingsway, London, W.C.2; 120 George Street, Edinburgh 2;
39-41 King Street, Manchester 2; 1 St. Andrew's Crescent, Cardiff;
80 Chichester Street, Belfast;
or through any bookseller